

Court No. - 83

Case :- APPLICATION U/S 482 No. - 17631 of 2022

Applicant :- Rajeev Chaturvedi

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Vishnu Shankar Choubey

Counsel for Opposite Party :- G.A., Udit Chandra

Hon'ble Gautam Chowdhary, J.

Heard learned counsel for the applicant, learned A.G.A. for the State and Sri Udit Chandra, learned counsel for the Power Corporation.

The present 482 Cr.P.C. application has been filed for quashing the charge sheet dated 10.08.2019 as well as cognizance/summoning order dated 05.03.2020 passed by learned Additional District and Sessions Judge/Special Judge (Electricity Act) Varanasi in Criminal Case No. 329 of 2020 (State Vs. Rajeev Chaturvedi, arising out of Case Crime No. 0090 of 2019 under Section 135 Electricity Act, 2003, Police Station Kotwali, District Varanasi.

Learned counsel for the applicant submits that the procedure to be adopted by the licensee for Inspection, Provisional, Assessment Hearing and Final Assessment in case of theft of electricity as has been provided under Section 8.1 of Electricity Supply Code, 2005 has not been followed and therefore, the entire proceedings are vitiated in law. Learned counsel for the applicant further submits that the applicant has been falsely implicated in the present case due to ulterior motive. Submission is that the malafides which motivated the opposite party have been emphasized and several submissions in order to expose the falsity of the allegations have been made. Further submission is that malafides behind the prosecution are apparent on the face of record and if the proceedings against the applicant is allowed to go on, it will result in the abuse of court's process. Learned counsel for the applicant therefore submits, no prosecution could lie against the applicant, in such circumstances.

Matter requires consideration.

Notice on behalf of opposite party no. 1 has been accepted by learned A.G.A.

Issue notice to opposite party no.2 returnable at an early date.

Opposite parties may file their counter affidavits within four weeks. Rejoinder affidavit may be filed within two weeks thereafter.

List immediately after expiry of the aforesaid period before appropriate Bench.

Till the next date of listing, no coercive action shall be taken against the applicant in the aforesaid case.

Order Date :- 14.7.2022

S.Ali

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Hon'ble Gautam Chowdhary, J.

Order on Correction Application No. 1 of 2022.

Heard learned counsel for the parties.

Learned counsel for the applicant submits that due to inadvertent mistake date of charge sheet has been wrongly transcribed as 10.08.2019, which ought to be 10.06.2019 in the order dated 14.07.2022 and prays to permit him to correct the same in prayer of the application and further prayed to correct the same in the order dated 14.07.2022.

The correction application is allowed.

Learned counsel for the applicant is permitted to correct the prayer of the application.

Accordingly, the digit "10.08.2019" shall be read as "10.06.2019" in line no. 2 of paragraph no.2 of the order dated 14.07.2022.

Order Date :- 27.7.2022

S.Ali